- F.A

A.O.J.F.A

Programme: Bachelor of Economics and Management

Course: Introduction to Tax Law

Course master: FORCHAP BEBONGNCHU: LLM Digitalisation and Tax Law; Vienna University of Economics and Business (WU), Senior Tax Inspector.

Semester exams: Time allowed 3h

Documents allowed: Cameroon's General Tax Code

Give short and precise answers to the following questions (Questions 1 to 10 carry 4 mark each while questions 11 to 15 carry 6 marks each.

1/ The theory of the independence of tax law can be explained by both the concept of autonomy and that of the specificity of tax law, briefly brings out the difference between the two.

2/ In the case of both proportional tax and progressive tax, taxpayers pay relatively more tax as their income increases, true or false? Briefly explain your answer.

3/ Give the definition of taxation by Gaston Jeze. From your understanding of the role of taxation as conceived today, do you think that this definition is complete? Explain your answer.

4/ Briefly states the principle of realism and "amoralism" in tax law and give two practical examples

5/ The Belfort Insurance Case brought out the fact that tax law doesn't lean on any legal discipline. True or false.

6/ Briefly define the concept of case law and general principles of law and explain the interrelationship between the two concepts as sources of tax law.

7/ Can general principles of law be equated to constitutional norms in any instance? Briefly explain your answer.

8/ In the identification of norms as sources of taxation law in Cameroon, which one is more important international laws or the constitution? Explain your answer.

9/ The OHADA Uniform Act on Accounting and Financial Information is an important source of Tax law. Briefly explain with examples.

10/ Define direct and indirect tax and say on who the tax incident (tax burden) lies.

11/ The tax on transfer of money in Cameroon is an example of economic classification of taxes based on both the actor and the sector. Do you agree?

12/ Differentiate between progressive and proportional tax systems. Which of the two can best be used to encourage hard work? Briefly explain your answer.

13/ What is the major difference between the self-assessment method and official or administrative assessment method. How does compliance and enforced compliance affects the two?

14/ The territorial tax system and worldwide tax system can both lead to double taxation issues. Briefly explain. How does each of the system affects investment decisions of a multinational enterprise?

15/ Considering the knowledge you have acquired in the course "Introduction to Tax Law", advise the state on how to achieve the "Import Substitution" policy acclaimed by policy makers in the agricultural sector in Cameroon.

Good luck